



HINDUSTAN COPPER LIMITED
(A Govt. of India Enterprise)

Expression of Interest (EOI) for

Selection of
Technology supplier for providing retrofitting / cost effective
solution to capture SO₂ from the process of Flash smelting of
copper concentrate, converting of matte & copper slag processing
operation at ICC, Ghatsila, India .

Reference No: HCL/ICC/SAP/EOI/2015

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Tamra Bhavan, 1, Ashutosh Chowdhury Avenue, Kolkata - 700 019
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1.1 Introduction:

Hindustan Copper Limited (HCL), a Mini Ratna Public Sector Enterprise under the administrative control of the Ministry of Mines, was incorporated on 9th November 1967. It has the distinction of being the nation's only vertically integrated copper producing company as it manufactures copper right from the stage of mining to beneficiation, smelting, refining and casting of refined copper metal into downstream saleable products. HCL has the distinction of owning all copper mining leases in the country.

The company has its corporate and registered office in Kolkata. HCL has five operating units viz. Khetri Copper Complex(KCC) (Rajasthan), Malanjkhand Copper Project(MCP) (Madhya Pradesh), Indian Copper Complex(ICC), Ghatsila (Jharkhand) and Taloja Copper Project(TCP) (Maharashtra) & Gujarat Copper Project (GCP) (Jhagadia, Gujarat). While Khetri and Ghatsila are fully integrated units (mining, ore beneficiation, smelting and refining), Malanjkhand has mining and ore beneficiation ,Taloja has wire rod manufacturing facility and GCP has copper refining facility through secondary processing route. The marketing/sales setup is headquartered at Kolkata with four regional sales offices in Delhi, Mumbai, Kolkata & Bangalore and sales godowns spread across the country.

The company manufactures and markets copper cathodes, copper continuous cast copper wire rod and by-products such as anode slime (containing gold, silver & selenium), copper sulphate and sulphuric acid.

HCL has embarked on an ambitious expansion plan whereby the mining capacity is likely to go up four fold in the coming years.

Further details about the company and its operations can be obtained from its website www.hindustancopper.com.

1.2 Objective of EOI:

HCL is processing copper concentrate through flash smelting technology at its ICC Unit , Ghatsila (Jharkhand/ India). The SO₂ gas which is emanated from the smelter plant is currently treated in a Sulphuric acid plant using conventional single conversion single absorption technology.

HCL is willing to adopt latest efficient technology for capturing entire SO₂ from the smelter & Acid plant. The desired technology should be cost effective and preferably utilize most of the existing equipments available at site. A retrofitting of the existing sulphuric acid plant may be an option in this direction.

1.3 Scope of Technology supplier:

- i. To provide a techno-economically feasible process technology to capture entire SO₂ emanating from the smelter & Acid plant. Retrofitting solution will be preferred.

2.0 Instruction to the Respondents

2.1 Selection Criteria:

The intending Respondents shall fulfill the following criteria:

- i. The technology should be proven and have been adopted anywhere in the world.
- ii. A proof of successful operation of the technology may be enclosed.
- iii. New technology provider are also encouraged to participate in EOI, however HCL will decide whether to invite for discussion afterwards or not.

3.0: General Instruction

3.1 Submission of the Proposal:

The interested respondents are required to submit their EOI by 15:00 Hrs on 24/09/2015 to the following address:

To
Shri Santosh Sharma
Executive Director (Operation)
Tamra Bhavan,
1, Ashutosh Chowdhury Avenue,
Kolkata - 700 019

The Interested party may submit their EOI duly signed by the authorized signatory. The Bid must be in English and each copy shall be bound in a separate volume.

Submission of the aforesaid documents by fax, e-mail or other electronic means will not be acceptable. It is the responsibility of the interested party to ensure that its EOI is delivered at the above address by the stated time and date. The covering envelope containing aforesaid documents submitted should be clearly marked:

“Expression Of Interest for selection of technology supplier for providing retrofitting / cost effective solution to capture SO₂ from the process of flash

**smelting of copper concentrate, converting of matte & copper slag
processing operation at ICC, Ghatsila, India”.**

3.2 Further information/ clarifications:

Any request for further information or clarification relating to the contents of this Eol document, may be submitted in writing to:

To

Shri Santosh Sharma

Executive Director (Operation)

email santoshsharma@hindustancopper.com

Tel: +91 33 22832226

or

Shri R Adhikari, Chief Manager (Chemical),

email - ramananda_a@hindustancopper.com/

Tel : +91 33 22803259

HCL reserves the right not to respond, to questions raised or provide clarifications sought, in its sole discretion, if it considers that it would be inappropriate to do so. Nothing in this section shall be taken or read as compelling on the part of HCL requiring to respond to any question or to provide any clarification. No extension of any time and date referred to in this document shall be granted on the basis or grounds that HCL have not responded to any question/provided any clarification.

3.3 Requests for clarification:

If at any time during the evaluation process, HCL requires any clarification on the Eol submitted by the interested party in order to carry out the evaluation, it reserves the right to request such information from any or all of the interested party(ies) and such party will be obliged to respond to any reasonable request for such information and to supply the same within such reasonable time frame as may be required.

3.4 Eol Process

Following completion of the initial process, all short listed parties fulfilling eligible criteria will be provided with an opportunity to hold further discussions with the senior management of HCL. They will also be furnished with further information, if required. However, information will be provided at the sole discretion of HCL. All short listed parties before submission of bids will be provided with an opportunity to:

- (i) hold further discussions with the senior management of HCL and
- (ii) undertake plant visits.

The terms relating to submission of bids will be set out in the RFP and other document(s) to be prepared for the purpose.

3.5 Modification/Cancellation

- i. HCL will be at liberty to amend/modify/delete any of the above conditions and/ or the process as may be deemed necessary in the light of the facts and circumstances of the case.
- ii. HCL reserves the sole right to refuse any or all EOIs without assigning any reasons thereof.
- iii. HCL reserves the right to proceed with/ cancel the process irrespective of the response to its invitation.
- iv. HCL at its discretion may extend the last date for submission of EOI.
- v. Interested parties are advised to keep themselves informed of any such modification/ cancellation that may be notified. HCL shall not be notifying any such modification separately through any other media.
- vi. Decision of HCL in respect of the above would be final and binding on the parties.

3.6 Governing Laws/Jurisdiction/Arbitration

All matters relating to the EOI and selection of Interested Party and the bidding procedure shall be governed by the laws of Union of India. Only courts at Kolkata (with exclusion of all other courts) shall have the jurisdiction to decide or adjudicate on any matter, which may arise out of or in connection with the selection of an Interested Party.

ARBITRATION:

All question(s), dispute(s) or difference(s) of any kind whatsoever arising out of, or relating to the contract shall be referred within 30 days from the date of dispute by the parties to this contract for decision to sole arbitrator, who shall be the Chairman - cum - Managing Director of HCL or any other Officer of the Company nominated by the said Chairman-cum-Managing Director in that behalf. In the event of such an arbitrator to whom the matter is originally referred, is transferred or vacates his office by resignation or otherwise or refuses to act or is incapable of acting for any reasons whatsoever, the Chairman-cum-Managing Director shall appoint another person to act as arbitrator in his place in accordance with the terms of this contract. Such person(s) shall be entitled to proceed from the stage at which his predecessor left it.

There will be no objection to any such appointment that the arbitrator appointed is an Officer of the Company or that he had hand to deal with the matter to which this contract relates or that in the course of his duty as such Officer he has expressed views on all or any of the matters in dispute or

difference. No person other than the Chairman - cum - Managing Director or his nominee can act as arbitrator.

The seat & venue of the arbitration shall be Kolkata only. The award of the arbitrator shall be final and binding on the parties.

Subject to the above, the provision of Arbitration and Conciliation Act, 1996 and the rules there under and the statutory modifications thereof shall govern such arbitration proceedings and shall be deemed to apply and be incorporated in this contract.

Any dispute, if arises at any point of time out of arbitration shall have exclusive jurisdiction of the Court of Kolkata, West Bengal.

3.7 General Terms & Conditions

- i. Though adequate care has been taken while issuing this Eol document, HCL shall not be responsible for any consequences due to misprinting or any wrong translation by the newspaper/magazine/web portal concerned.
- ii. The respondent should satisfy himself that document is complete in all respects. The Respondent should contact the competent authority and verify facts in case of confusion, before submission of Eol.
- iii. This Eol does not create a tender process. By this Eol, HCL reserves to itself the right to consider and analyze the Eols, short-list select respondents, issue the tender document for detailed proposals, and sign an agreement with the preferred company.
- iv. Without limiting the generality of the foregoing, HCL reserves the right to:
 - a. Reject any Eol, whether or not complete and whether or not it contains all the required information;
 - b. Require clarification of any Eol; request additional information on any Eol;
 - c. Reject any or all Eols without any obligation, or any compensation or reimbursement to the respondents;
 - d. Modify the terms and conditions of the Eol and subsequent processes;

- v. HCL may, in its sole and absolute discretion, independently verify any information in any submission.
- vi. Mode of Eol evaluation shall be final and binding to all respondents. HCL shall not entertain any correspondence in this regard.
- vii. Opening of Eol: - The Respondent may remain present personally or may depute an authorized representative at the time of opening of Eol documents.
- viii. The parties who have applied for Expression of Interest will only be considered for participation in main tender.
- ix. Mere participation & qualification in Eol will not automatically mean that such respondents are considered qualified.

4. Forms.

Form 1

Submission of proposal

(To be forwarded on the letter head of the interested party submitting the Eol)

Ref :

Date

To
Shri Santosh Sharma
Executive Director (Operation)
Tamra Bhavan,
1, Ashutosh Chowdhury Avenue,
Kolkata - 700 019
INDIA

Sub: “Expression Of Interest for selection of technology supplier for providing retrofitting / cost effective solution to capture SO₂ from the process of flash smelting of copper concentrate, converting of matte & copper slag processing operation at ICC, Ghatsila, India”.

Please refer to the invitation for Expression of Interest issued in respect of the above mentioned subject matter. We have read and understood the contents of the invitation for EOI. We are desirous to take part as a technology supplier forand propose to submit this EOI.

We believe that our Company satisfies the eligibility criteria set out in the relevant sections of the EOI. The information template and litigation impact statement of legal capacity as per the format indicated in the EOI duly signed by us are enclosed.

You and your authorized representatives may contact the person(s) listed below for further information. The undersigned is (are) fully authorized to act on behalf of the respondent

We shall be glad to receive further communication on the subject.

Signature

Name

(For <Respondent>)

Form 2

Information Template (from prospective technology provider)

Following information are to be provided by the prospective Technology provider:

Sl. No.	Particulars
1.	Name of the Body Corporate
2.	Address : - Registered office with telephone number and email address - Factory with telephone number and email address - Administrative/ Corporate office with telephone number and email address
3.	Name of the Key Executive
4.	List of the company where the technology was adopted
5.	Document enclosed in support of successful operation of the technology
.	Other remarks, if any

Form 3

Litigation Impact Statement

(To be forwarded on the letter head of the interested party submitting the Eol)

Ref :

Date

To
Shri Santosh Sharma
Executive Director (Operation)
Tamra Bhavan,
1, Ashutosh Chowdhury Avenue,
Kolkata - 700 019
INDIA

Sub: “Expression Of Interest for selection of technology supplier for providing retrofitting / cost effective solution to capture SO₂ from the process of flash smelting of copper concentrate, converting of matte & copper slag processing operation at ICC, Ghatsila, India”.

Sirs,

We refer to the “Expression Of Interest for selection of technology supplier for providing retrofitting / cost effective solution to capture SO₂ from the process of flash smelting of copper concentrate, converting of matte & copper slag processing operation at ICC, Ghatsila, India”. We have read and understood the contents of the Eol document and pursuant to this hereby confirm that we satisfy the eligibility criteria laid out in the Eol.

We hereby confirm that we shall not share any information with pertaining to HCL which will be provided to us during the process of EOI or prior to the process of EOI.

Further, the authorized signatory is vested with requisite powers to furnish such letter and Request for Qualification and authenticate the same

Yours faithfully,
(_____)
Authorised signatory
for and on behalf of

Appendix - Definitions

In this EoI document, the following terms shall be defined as indicated:

- i. **“HCL”** means Hindustan Copper Limited;
- ii. **“EOI”** means an expression of interest made in response to this ;
- iii. **“Respondent”** means any entity, including a company or firm which returned a Cover Letter to the Contact Person, and plans to submit an EoI in response to this EoI.
- iv. **“ICC”** mean Indian Copper Complex.
- v. **“MCP”** mean Malanjkhand Copper Project.
- vi. **“KCC”** mean Khetri Copper Complex